

Rajeev Chaturvedi v. State of U.P. (s.135 charge-sheet; 482 CrPC stay)

High Court of Judicature at Allahabad · Single Judge · 14 July 2022 · Application U/S 482 No. 17631 of 2022 · Application U/S 482 No. 17631 of 2022 · **Notice issued; coercive action stayed pending listing.**

HEADNOTE

On a Section 482 Cr.P.C. application to quash a Section 135 Electricity Act charge sheet and cognizance order for alleged non-compliance with clause 8.1 of the U.P. Electricity Supply Code, 2005 (inspection, provisional assessment, hearing and final assessment in theft cases), the Allahabad High Court held that the matter required consideration, issued notice to the State and the Power Corporation, and directed that no coercive action be taken against the applicant till the next date of listing. A later correction order substituted the charge-sheet date as 10.06.2019.

FACTUAL SUMMARY

Rajeev Chaturvedi sought quashing of the 10.06.2019 charge sheet and 05.03.2020 cognizance order of the Special Judge (Electricity Act), Varanasi, in Criminal Case No. 329 of 2020 arising from Case Crime No. 0090 of 2019 under Section 135 of the Electricity Act, 2003, P.S. Kotwali. He alleged that the licensee had skipped the clause 8.1 Supply Code, 2005 procedure for inspection, provisional assessment, hearing and final assessment in theft cases, and that the prosecution was mala fide.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

482 CrPC stay of s.135 electricity-theft prosecution

HOLDING

A 482 Cr.P.C. challenge to a Section 135 Electricity Act charge sheet and cognizance order, alleging that the licensee had not followed Supply Code clause 8.1 theft-assessment procedure, was listed for consideration with notice to the Power Corporation and an interim direction that no coercive action be taken against the accused till the next date of listing. The Court did not decide whether clause 8.1 non-compliance vitiates the prosecution. ¶ 1

PRINCIPLE TAGS

procedural-listing-no-construction The Court issued notice and stayed coercive action on a 482 challenge to a s.135 charge sheet without construing clause 8.1 of the Supply Code or deciding whether non-compliance vitiates the prosecution. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER NON-COMPLIANCE WITH CLAUSE 8.1 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 (INSPECTION, PROVISIONAL ASSESSMENT, HEARING AND FINAL ASSESSMENT IN THEFT CASES) VITIATES THE SECTION 135 PROSECUTION AND WARRANTS QUASHING OF THE CHARGE SHEET AND COGNIZANCE ORDER.

Applicant's principal ground; the Court only held that the matter requires consideration. ¶ 1

NOT DECIDED — WHETHER THE PROSECUTION IS MALA FIDE OR A FALSE IMPLICATION.

¶ 1